

Senate File 603

H-1117

1 Amend the amendment, H-1106, to Senate File 603, as passed by
2 the Senate, as follows:

3 1. Page 2, after line 17 by inserting:

4 <DIVISION ____

5 RECAPTURE OF TAX EXPENDITURES FOR CHILD LABOR VIOLATIONS.

6 Sec. _____. NEW SECTION. 15K.1 Recapture of tax expenditures
7 for child labor violations.

8 1. As used in this chapter:

9 a. "*Business*" means the same as a person as defined in
10 section 4.1.

11 b. "*Proceeds*" means the same as noncash and cash proceeds
12 as defined in section 554.9102.

13 c. "*Tax expenditure*" means the same as defined in section
14 2.48, subsection 1.

15 2. Notwithstanding any other provision of law to the
16 contrary, beginning on or after July 1, 2025, as a condition
17 of authorizing tax expenditures to a business under any of the
18 programs administered by a department of the state, the value
19 of the tax expenditures authorized by the department shall be
20 subject to recapture by the department administering the tax
21 expenditure if the business, or a contractor, subcontractor,
22 or other third party of the business providing services to the
23 business in the business's facility, has violated state or
24 federal child labor laws under chapter 92 or the federal Fair
25 Labor Standards Act of 1938.

26 3. The business shall notify the administering department
27 of the violation within thirty days of the ending of the time
28 period to contest or appeal the violation.

29 4. The repayment or recapture of tax expenditures pursuant
30 to this chapter shall be accomplished in the same manner as
31 provided in section 15.330, subsection 2.>

32 2. Page 2, by striking lines 18 through 21 and inserting:

33 <____. Title page, by striking lines 1 through 4 and
34 inserting <An Act concerning workforce compensation and
35 training, unemployment insurance, recapture of certain tax

1 expenditures disbursed to businesses that violate child labor
2 laws, and other functions and programs of state departments
3 and local government entities, and including effective date
4 provisions.>>
5 3. By renumbering as necessary.

COOLING of Linn